



## CHAPTER xii.

An Act to provide a new constitution for Messrs.      A.D. 1926  
Hoare Trustees and to re-incorporate the same  
and for other purposes.      [16th June 1926.]

**W**HEREAS Messrs. Hoare Trustees (hereinafter referred to as "the existing Company") is a company registered under the Companies (Consolidation) Act 1908 as a private company with unlimited liability for the purposes of carrying on the business of acting as an executor or trustee or both executor and trustee and of undertaking any executorships and any trusts :

And whereas by the articles of association of the existing Company the holding of shares in the existing Company is restricted to persons who are members of the partnership firm now or hereafter carrying on the business now carried on by Messrs. Hoare of 37 Fleet Street in the city of London bankers (hereinafter referred to as "the bank") or persons approved by the directors and the holding of the office of a director in the existing Company is restricted during the existence of the bank to persons who are members of the said firm :

And whereas the bank has been carried on by the present partners therein or their predecessors for a period of more than 250 years and many of the customers of the bank have appointed the existing Company executor trustee and custodian trustee or to act in some or one of those capacities in respect of their respective properties or some part or parts thereof and the existing Company being empowered by its constitution to undertake trusts



A.D. 1926. — was by Rule 30 of the Public Trustee Rules 1912 (S.R. & O. 1912 No. 348) entitled to act as custodian trustee and has accepted such appointments and is acting in those capacities :

And whereas by the Administration of Estates Act 1925 and divers other Acts of Parliament which came into operation on the first day of January nineteen hundred and twenty-six it is provided that in each of those Acts the expression "trust corporation" means (amongst other things) a corporation entitled by rules made under subsection (3) of section 4 of the Public Trustee Act 1906 to act as custodian trustee :

And whereas by the Public Trustee (Custodian Trustee) Rules 1925 which were made on the seventeenth day of December nineteen hundred and twenty-five and came into operation on the first day of January nineteen hundred and twenty-six (S.R. & O. 1925 No. 1269/L. 47) the said Rule 30 of the Public Trustee Rules 1912 was revoked and the following rule substituted therefor:—

" 30.—(1) Any corporation constituted under the law of the United Kingdom or of any part thereof and having a place of business there and empowered by its constitution to undertake trust business and being either—

(a) a company incorporated by special Act or Royal Charter; or

(b) a company having a share capital for the time being issued of not less than £250,000 of which not less than £100,000 shall have been paid up in cash;

shall be entitled to act as a custodian trustee.

(2) In this Rule the 'United Kingdom' means Great Britain and Northern Ireland; 'trust business' means the business of acting as trustee under wills and settlements and as executor and administrator; 'share capital' includes stock."

And whereas the last mentioned rule prevents the existing Company carrying on business which it has legitimately undertaken for and at the request of customers of the bank and places the bank at a disadvantage in comparison with the joint stock banks:



And whereas the re-incorporation of the existing Company under paragraph (b) of the last mentioned rule would deprive the cestuis que trust of the existing Company of some of the security which they now enjoy from the present constitution of the existing Company : A.D. 1926.  
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And whereas it would remove a public disadvantage and be a great convenience to the many persons for whom the existing Company before the making of the new rule acted and still act and for whom by testamentary or other documents which have not yet become effective they have been appointed to act as executor trustee or custodian trustee or in some or one of those capacities and to the customers of the bank if the existing Company were re-incorporated as in this Act provided and it is expedient that the existing Company be re-incorporated accordingly :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as *Messrs. Hoare Trustees Act 1926.* Short title

2. This Act shall commence and have effect on and from the date of the passing of this Act which date is hereinafter referred to as "the commencement of this Act." Commence  
ment of Act

3. In this Act and in the schedule to this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them (that is to say) :— Interpreta-  
tion.

"The existing Company" means *Messrs. Hoare Trustees* as constituted and existing immediately prior to the commencement of this Act;

"The Company" means the company hereby incorporated;

"General meeting" means a general meeting of the members of the Company;



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“Special resolution” has the meaning assigned thereto by the Companies (Consolidation) Act 1908;

“The articles” means the articles or regulations of the Company set out in the schedule hereto or other the articles or regulations for the time being of the Company;

“Securities” includes stocks funds and shares.

Cancellation  
of share  
capital.

4. As from the commencement of this Act the incorporation of the existing Company shall be deemed to be annulled and all shares in the share capital of the existing Company shall be deemed to be cancelled together with all claims rights and liabilities attaching thereto.

Re incor-  
poration  
of Messrs.  
Hoare  
Trustees.

5. As from the commencement of this Act the persons who immediately prior thereto were the holders of any share or shares in the share capital of the existing Company hereby cancelled and who by virtue of the provisions hereinafter contained become on the commencement of this Act holders of a share or shares or interest in the Company and all other persons who shall hereafter become and be the holders of any share or shares or interest in the Company in accordance with the articles so long as they respectively continue to fulfil the conditions of membership as prescribed by this Act shall be and are hereby incorporated by the name of “Messrs. Hoare Trustees” and by that name shall be a body corporate with perpetual succession and a common seal and with power for the purposes of this Act to receive take transfers of acquire hold lease and dispose of land and other property and further with such constitution objects and powers as are contained in this Act and shall be subject to such articles for the government of the Company and the management of its business and the conditions of membership and other matters as are contained in this Act and the schedule to this Act or as such articles may from time to time be lawfully altered.

Vesting in  
Company  
of existing  
property.

6.—(1) All property of what kind or nature soever including real and personal property and all estates shares and interests in property real and personal and all debts and things in action and all other rights and interests whether in possession or not which immediately



before the commencement of this Act belonged to or were held by or vested in the existing Company whether beneficially or subject to any trust shall on the commencement of this Act pass to and vest in the Company for all the estate and interest therein of the existing Company but as to any property aforesaid held by or vested in the existing Company upon any trust immediately before the commencement of this Act upon the trusts and subject to the powers and provisions applicable thereto respectively. A.D. 1926.  
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(2) Where immediately before the commencement of this Act any interest in real or personal estate was vested in a syndic on behalf of the existing Company acting as the personal representative of a deceased person the same shall on the commencement of this Act by virtue thereof vest in the Company and the syndic shall be kept indemnified by the Company in regard to any interest so vested.

This subsection does not apply to securities registered or inscribed in the name of a syndic or to land or a charge registered under the Land Registration Act 1925 in the name of a syndic but any such securities land or charge shall be transferred by the syndic to the Company or as the Company may direct.

(3) No vesting or transfer effected by this section shall operate as a breach of covenant or condition against alienation or give rise to a forfeiture.

(4) References to the existing Company in any instrument inter vivos made or in any will whether in operation before or coming into operation after the commencement of this Act shall be construed unless the context otherwise requires as referring to the Company.

(5) In full satisfaction of all stamp duties which would otherwise have been payable upon the deeds or instruments which but for this Act would have been required to pass such property rights and interests debts and things in action in this section set forth and to vest the same in the Company and payable in respect of the vesting of such property rights and interests debts and things in action by virtue of this Act there shall be paid a stamp duty of five pounds and such duty shall be impressed upon a copy of this Act and the Company shall produce such stamped copy to the Commissioners



A.D. 1926. of Inland Revenue within three months after the commencement of this Act.

Powers of  
Company.

7. The Company shall have the powers and objects following :—

- (1) To act as executor or trustee or both as executor and trustee or as administrator and to undertake and execute any executorship administration or trust the undertaking of which may seem desirable :
- (2) To undertake any business which may for the time being be undertaken by a trust corporation as defined by any statute :
- (3) In particular and without limiting the generality of the foregoing provisions to undertake the following offices and do all acts and perform all duties appertaining to such offices respectively whether alone or jointly with any other person or persons namely The offices of (a) executor of a will (b) trustee of a will (c) trustee of any settlement howsoever created for all or any the purposes thereof including the purposes of the Settled Land Act 1925 (d) custodian trustee of a will or settlement (e) judicial trustee (f) administrator of any estate or property under or in pursuance of the Administration of Estates Act 1925 or the Supreme Court of Judicature (Consolidation) Act 1925 (g) trustee of an infant's property (h) trustee of a trust deed securing debentures or debenture stock (i) trustee for any public authority institution or society :
- (4) To charge fees in respect of the duties performed by the Company :
- (5) To obtain any Act of Parliament or any judicial or other legal sanction for enabling the Company to carry any of its objects into effect or for introducing any modification into the constitution of the Company or for any other purpose which may seem expedient and to oppose or contribute towards the expense of opposing any Bill in Parliament or any proceedings or applications which may be deemed to be prejudicial to the interests of the Company :



(6) To take or concur in taking all such steps and proceedings as may seem best calculated to uphold and support the credit of the Company and to obtain and justify public confidence therein : A.D. 1926.

(7) To do all such things as the Company may think incidental or conducive to the attainment of all or any of its objects.

8. The number of members of the Company is declared to be six but the directors may register an increase in the number of members whenever they think fit so long as the total number of members of the Company does not at any time exceed ten. Number of members.

9. In order to determine the proportions in which members for the time being of the Company are interested in the Company the undertaking of the Company shall be deemed to be divided into a specified number of shares or interests and the members shall be deemed to be interested in the Company in proportion to the number of such shares or interests for the time being registered in their respective names as hereinafter provided and until otherwise determined by special resolution the undertaking of the Company shall be deemed to be divided into twenty shares numbered 1 to 20 inclusive. Such shares shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of the shares of the existing Company in the proportion of one of such shares in the Company for each share of the existing Company held by them respectively. Division of undertaking into fixed number of shares or interests.

10. The Company shall call in and cancel and the holders of shares in the capital of the existing Company shall surrender to the Company the existing certificates for shares in the existing Company and the Company shall issue in lieu thereof certificates of the shares to which the holders of shares in the existing Company are by this Act respectively entitled. Exchange of certificates.

11. No person shall be a member of the Company unless he is a member of the partnership firm now or hereafter carrying on the business now carried on by Messrs. Hoare of 37 Fleet Street in the city of London bankers or a director of an unlimited company incorporated under the Companies (Consolidation) Act 1908 Members qualification



A.D. 1926. — for the purpose of carrying on that business or a director or local director of any joint stock bank with which the business of Messrs. Hoare may be amalgamated.

Liability of  
members.

**12.** Every present and past member shall be liable to contribute as and when necessary to the assets of the Company to an amount sufficient for payment of its debts and liabilities and for the adjustment of the rights of the contributors among themselves :

Provided that a past member shall not be liable to contribute in respect of any debt or liability which was contracted by or arose against the Company more than one year after he ceased to be a member.

For the purposes of this section the debts and liabilities (if any) of the existing Company shall be deemed to be debts and liabilities contracted by the Company immediately after the passing of this Act.

Register of  
members.

**13.** The Company shall keep a register of its members and enter therein the following particulars :—

- (1) The names and addresses and the qualifications of the members and a statement of the number of shares or interests constituting the interests of such members respectively and the distinguishing numbers of such shares or interests respectively :
- (2) The date at which each person was entered in the register as a member :
- (3) The date at which any person ceased to be a member.

Transfer of  
shares on  
death &c.

**14.** On death or bankruptcy of a member the shares or interests of such member shall forthwith be transferred to such member or person qualified to be a member as may be nominated for the purpose by the directors and no executor administrator or trustee of a deceased or bankrupt member shall by virtue of that office become a member of the Company. No pecuniary or other consideration shall be required paid or given for any such transfer but upon such transfer the estate of the deceased or bankrupt member whose shares or interests are so transferred shall be entitled to be indemnified in respect of such shares or interests by the members of the Company for the time being.



15. A general meeting of the Company shall be held in the year one thousand nine hundred and twenty-six at such time as the directors shall decide and there-after a general meeting of the Company shall be held once at least in every calendar year but so that not more than fifteen months shall be allowed to elapse between any two annual general meetings Notice of every such annual general meeting shall be given to the members and in the manner provided by the articles.

A.D. 1926.  
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General  
meetings.

16. The office of the Company shall be in London.

17.—(1) The qualification of a director shall be the holding of one or more shares or interests in the undertaking of the Company. Directors.

(2) The directors of the existing Company who shall be in office immediately prior to the commencement of this Act shall be the first directors of the Company Each of the directors appointed by this section shall continue in office as a director of the Company so long as he lives and remains a member of the Company unless his office shall sooner be vacated in accordance with the provisions of subsection (3) of this section.

(3) The office of director shall ipso facto be vacated—

- (a) if he ceases to be a member of the Company;
- (b) if he is found lunatic or becomes of unsound mind;
- (c) if a receiving order is made against him or he makes any arrangement or composition with his creditors;
- (d) if he absents himself from meetings of the board during a continuous period of twelve months without special leave of absence from his co-directors and they pass a resolution that he has by reason of such absence vacated his office;
- (e) if by notice in writing given to the Company he resigns his office.

18. The auditor of the existing Company who shall be in office immediately prior to the commencement of this Act shall continue in office as auditor of the Company at the remuneration to be fixed by the directors until the first annual general meeting of the Company to

Auditors.



A.D. 1926. be held thereafter unless he shall sooner die resign become disqualified or be removed from office Subject as aforesaid the provisions of sections 112 and 113 of the Companies (Consolidation) Act 1908 shall apply to the Company as if the Company were a company incorporated under that Act.

Present  
officers to  
continue in  
office.

**19.** All officers and servants of the existing Company who shall be in office immediately prior to the commencement of this Act shall continue to hold and enjoy their respective offices and employments as officers and servants of the Company and shall be subject to the like conditions obligations and penalties and to the like powers of removal in all respects as if they had been appointed under this Act and had been and were at all times officers and servants of the Company.

Regulations  
of Company.

**20.** As from the commencement of this Act the articles set forth in the schedule to this Act shall be the articles of the Company and the Company may subject to the provisions of this Act at any time by special resolution alter revoke or add to any of the articles and any alteration or addition so made shall be as valid as if originally contained in the articles and be subject in like manner to alteration by special resolution and so from time to time.

Saving for  
acts.

**21.** All acts matters and things executed or done by the existing Company or the directors or officers thereof or by any other person in the name of or on behalf of the existing Company between the thirty-first day of December one thousand nine hundred and twenty-five and the commencement of this Act shall be of as full force and effect as they would have been if Rule 30 of the Public Trustee Rules 1912 (S.R. & O. 1912 No. 348) had remained in force until the commencement of this Act.

Saving of  
existing  
rights of  
action.

**22.** All causes and rights of action suits references arbitrations or other proceedings which shall have occurred before and shall in any manner be enforceable by or for or against the existing Company immediately prior to the commencement of this Act shall subject to the provisions of the last preceding section of this Act be and remain as good valid and effectual by or for or against the Company as they would or might have been



by or for or against the existing Company if this Act had not been passed. A.D. 1926.

**23.** The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director of the Company who knowingly and wilfully authorises such default shall incur a like penalty Every penalty under this section shall be recoverable summarily.

Copy of  
Act to be  
registered.

There shall be paid to such registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

**24.** All costs charges and expenses preliminary to and of and incident to the preparing for obtaining and passing of this Act and carrying the same into effect or otherwise in relation thereto shall be paid by the Company.

Costs of Act.



A.D. 1926, The SCHEDULE referred to in the foregoing Act.

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## ARTICLES OF MESSRS. HOARE TRUSTEES.

### PRELIMINARY.

1. In the construction of these articles the following words shall have the respective meanings hereby assigned to them unless there be something in the context inconsistent therewith :—

Words denoting persons only shall include corporations :

“ The office ” means the office for the time being of the Company :

“ The register ” means the register of members of the Company :

“ Dividend ” includes bonus :

“ The directors ” means the directors for the time being of the Company :

“ The board ” means the directors :

“ Special resolution ” has the meaning assigned thereto by the Companies (Consolidation) Act 1908 :

“ The statutes ” means the Messrs. Hoare Trustees Act 1926 and any Act amending the same.

### CERTIFICATES OF SHARES OR INTERESTS.

2. Every member shall be entitled to a certificate of membership in respect of his shares or interests in the Company and such certificate specifying the number and denoting numbers of the shares or interests in respect of which it is issued shall be issued under the seal of the Company and signed by one director and countersigned by the secretary or some other person nominated by the directors for that purpose.

### TRANSFER OF SHARES AND INTERESTS.

3. No share or interest shall be transferred to any person other than a member or a person qualified to be a member of the Company.

4. The executors or administrators of a deceased member shall be the only persons recognised by the Company as having any title to the shares or interests registered in the name of such member.



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5. Subject as aforesaid and to the provisions of the statutes shares or interests shall be transferable but every transfer shall be in writing in the common form or in such other form as the directors shall from time to time approve and must be left at the office accompanied by the certificate of the shares or interests to be transferred and such other evidence (if any) as the directors may require to prove the title of the intending transferor. The directors may waive the production of the certificate of shares or interests to be transferred upon evidence satisfactory to them of its loss or destruction.

6. The instrument of transfer shall be executed by both the transferor and the transferee and the transferor shall be deemed to remain the holder of the share or interest and a member of the Company until the name of the transferee is entered on the register of members in respect thereof.

7. All instruments of transfer which shall be registered and the certificates of the shares or interests to which they refer shall be retained by the Company. If a certificate lodged and retained comprises more shares or interests than the transfer a new certificate for the residue shall be issued to the transferor.

8. The register of transfers shall be kept by the secretary under the control of the directors and the particulars of every transfer or transmission of every share shall be entered therein as soon as possible after the same shall have been left at the office.

#### GENERAL MEETINGS.

9. General meetings of the Company shall be held once in every year at such time and place as may be determined by the directors but so that not more than fifteen months shall be allowed to elapse between any two annual general meetings. Such meetings shall be called ordinary meetings. All other meetings of the Company shall be extraordinary meetings.

10. The directors may call an extraordinary meeting whenever they think fit. An extraordinary meeting shall be held at such time and place as may be determined by the directors.

11. Twenty-four hours notice at the least to the members specifying the place and hour of meeting and in case of special business the general nature of the business shall be given in manner hereinafter mentioned. Provided that the accidental omission to give such notice to or the non-receipt of such notice by any member shall not invalidate any resolution passed or proceeding had at any such meeting. And with the consent of all or of a majority of the members a meeting may be convened upon such shorter notice and in such manner as the members may approve.



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12. When it is proposed to pass a special resolution the two meetings may be convened by one and the same notice and it shall be no objection to such notice that it only convenes the second meeting contingently on the resolution being passed by the requisite majority at the first meeting.

## PROCEEDINGS AT GENERAL MEETINGS.

13. All business shall be deemed special that is transacted at an extraordinary meeting and all business that is transacted at an ordinary meeting shall also be deemed special with the exception of sanctioning a dividend the consideration of the accounts and balance sheets and the ordinary reports of the directors and auditors.

14. No business shall be transacted at any general meeting unless a quorum is present when the meeting proceeds to business. For all purposes the quorum shall be members personally present not being less than two.

15. If within half an hour from the time appointed for the holding of a general meeting a quorum is not present the meeting shall stand adjourned to the same day in the next week (or if that day be a holiday to the next working day thereafter) at the same time and place and if at such adjourned meeting a quorum is not present within half an hour from the time appointed for holding the meeting it shall be adjourned sine die.

16. The chairman (if any) of the board shall preside at every general meeting but if there be no such chairman or if at any meeting he shall not be present within fifteen minutes after the time appointed for holding the same or shall be unwilling to act as chairman the members present shall choose some member present to be chairman of the meeting.

17. The chairman may with the consent of the meeting adjourn any general meeting from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

18. At all general meetings a resolution put to the vote of the meeting shall be decided on a show of hands unless before or upon the declaration of the result of the show of hands a poll be demanded in writing by the chairman or by at least two members and unless a poll be so demanded a declaration by the chairman of the meeting that a resolution has been carried unanimously or by a particular majority or lost or not carried by a particular majority shall be conclusive and an entry to that effect in the minute book of the Company shall be conclusive evidence thereof without proof of the number or proportion of the votes recorded in favour of or against such resolution.



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19. If a poll be demanded in manner aforesaid and the demand be not withdrawn at the meeting the poll shall be taken at such time and place and in such manner as the chairman shall direct and the result of the poll shall be deemed to be the resolution of the meeting at which the poll was demanded.

20. No poll shall be demanded on the election of a chairman of a meeting or on any question of adjournment.

21. In the case of an equality of votes either on a show of hands or at the poll the chairman of the meeting shall be entitled to a further or casting vote.

22. The demand of a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded.

#### VOTES OF MEMBERS.

23. On a show of hands every member present in person shall have one vote and upon a poll every member present in person or by proxy shall have one vote for every share or interest held by him.

24. Votes may be given personally or by proxy.

25. The instrument appointing a proxy shall be in writing under the hand of the appointor or his attorney. No person shall act as proxy who is not entitled to be present and vote in his own right.

26. The instrument appointing a proxy shall be deposited at the office before the time appointed for holding the meeting or adjourned meeting at which the person named in such instrument proposes to vote.

27. An instrument appointing a proxy shall be in the form authorised by the Regulations (Table A) scheduled to the Companies (Consolidation) Act 1908 or in such other form as the directors may approve.

#### DIRECTORS.

28. Until otherwise determined by a general meeting the number of directors shall not be less than two nor more than ten.

29. The directors shall have power from time to time to appoint any other person being a member of the Company to be a director but so that the total number of directors shall not at any time exceed the maximum hereinbefore fixed and any such other director shall be entitled to hold office so long as he lives and remains a member of the Company unless his office shall sooner be vacated in accordance with the provisions of the statutes.



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30. The continuing directors may act notwithstanding any vacancy in the board. Provided that if the number of the directors be less than the prescribed minimum the remaining director shall forthwith appoint an additional director to make up such minimum or convene a general meeting of the Company for the purpose of making such appointment.

## POWERS OF DIRECTORS.

31. The business of the Company shall be managed by the directors who may exercise all such powers of the Company and do on behalf of the Company all such acts as may be exercised and done by the Company and as are not by the statutes or by these articles required to be exercised or done by the Company in general meeting subject nevertheless to any regulations of these articles to the provisions of the statutes and to such regulations being not inconsistent with the aforesaid regulations or provisions as may be prescribed by the Company in general meeting but no regulation made by the Company in general meeting shall invalidate any prior act of the directors which would have been valid if such regulation had not been made.

## PROCEEDINGS OF DIRECTORS.

32. The directors may meet together for the dispatch of business adjourn and otherwise regulate their meetings as they think fit and determine the quorum necessary for the transaction of business. Unless otherwise determined two shall be a quorum. Questions arising at any meeting shall be decided by a majority of votes. In case of an equality of votes the chairman shall have a second or casting vote.

33. A director may and on the request of a director the secretary shall at any time summon a meeting of the directors.

34. The directors may from time to time elect a chairman who shall preside at meetings of the directors and they may determine the period for which he is to hold office but if no such chairman be elected or if at any meeting the chairman be not present within five minutes after the time appointed for holding the same the directors present shall choose some one of their number to be chairman of such meeting.

35. The directors may delegate any of their powers to committees consisting of such member or members of their body as they think fit. Any committee so formed shall in the exercise of the powers so delegated conform to any regulations that may be imposed on it by the directors.

36. All acts bonâ fide done by any meeting of directors or of a committee of directors shall notwithstanding it be afterwards discovered that there was some defect in the appointment of any



such director or that they or any of them were disqualified be as valid as if every such person had been duly appointed and was qualified to be a director. A.D. 1926.

37. A resolution in writing signed by all the directors shall be as effective for all purposes as a resolution passed at a meeting of the directors duly convened held and constituted.

#### MINUTES.

38. The directors shall cause proper minutes or records to be made of all general meetings of the Company and also of all appointments of officers and of the proceedings of all meetings of directors and of the attendances thereat and all business transacted at such meetings and any such minute of any meeting if purporting to be signed by the chairman of such meeting or by the chairman of the next succeeding meeting shall be conclusive evidence without any further proof of the facts therein stated.

#### DIVIDENDS.

39. The profits of the Company shall be divisible among the members in proportion to the shares or interests held by them respectively.

40. The Company in general meeting may declare dividends but no dividend shall be payable except out of profits of the Company and no dividend shall carry interest as against the Company and no higher dividend shall be paid than is recommended by the directors and the declaration of the directors as to the amount of the net profits shall be conclusive.

41. All dividends from time to time payable on any share or interest in the Company shall be paid in such manner and to such account as the members shall from time to time by writing under their hands direct and in default of any such direction and unless and until the Company shall in general meeting otherwise direct all dividends shall be paid to the bank of the said Messrs. Hoare or their successors in business and the receipt of any cashier of such bank shall be a sufficient discharge to the Company and the directors for such payment.

#### RESERVE FUND.

42. The directors may before recommending any dividend set aside out of the profits of the Company such sums as they think proper as a reserve fund or reserve funds which shall at the discretion of the directors be applicable for meeting contingencies or for the gradual liquidation of any debt or liability of the Company Pending such application the directors may employ the sums from time to time so set apart as aforesaid



A.D. 1926. in the business of the Company or invest the same in such investments as they may think fit and from time to time deal with or vary such investments. The directors may also from time to time carry forward such sums as may be deemed expedient in the interest of the Company.

#### THE SEAL.

43. The seal of the Company shall not be affixed to any instrument except by the authority of the directors or a committee of the directors previously given and in the presence of one director at the least who shall sign every instrument to which the seal is affixed and every such instrument shall be countersigned by the secretary or some other person appointed by the directors. The authority to use the seal may either be given in each particular case or may be a general authority given to a director to use the same.

#### ACCOUNTS.

44. The directors shall cause proper accounts to be kept and the books of account shall be kept at the office.

45. Once in every year the directors shall lay before the Company in general meeting a profit and loss account for the period since the preceding account or (in the case of the first account) since the incorporation of the Company made up to a date not more than three months before such meeting. A balance sheet shall be made out in every year and laid before the Company in general meeting made up to a date not more than three months before such meeting. The balance sheet shall have attached thereto the auditors' report and shall be accompanied by a report of the directors as to the state of the Company's affairs and the amount which they recommend to be paid by way of dividend and the amount (if any) which they propose to carry to any reserve fund. The auditors' report shall be read before the Company in general meeting as required by section 113 of the Companies (Consolidation) Act 1908.

#### NOTICES.

46. A notice or any other document may be served by the Company upon any member either personally or by leaving it by hand or by sending it through the post in a prepaid letter addressed to such member at his registered address as appearing in the register of members or in the case of a notice by telegraphing the same to such member at his address aforesaid.

47. Any notice or other document shall be deemed to have been served or delivered if served or sent by post at the time



when the letter containing the same is put into the post or if served by telegraphing the same at the time when the notice to be telegraphed is delivered to the Post Office In proving such service by post it shall be sufficient to prove that the letter containing the notice or document was properly addressed and put into the Post Office as a prepaid letter and in proving such service by telegram it shall be sufficient to prove that the telegraphic form containing the notice and the address of the member was delivered to the Post Office and the charge for the telegram was paid.

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